Theory of law - class notes (winter 2026/2027)

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Spis treści

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1 Lecture 1

SCHEDULED: *<2026-10-05 Mon>*

1.1 Organizational matters

1. Form: seminar (pol. *konwersatorium*).
2. Course credit conditions:
    - final test (weight 50%) OR activity (weight 50%, based on the form in 'Questions' section)
    - presentation (weight 50%)
    - attendance is mandatory; two absences are allowed (each absence exceeding two absences lowers the grade to the next lower grade)

1.1.1 Activity during class

Every student can and should ask questions (both to the lecturer and to other students, if they are giving a presentation). After asking a question (or other activity, including getting a yellow card), please fill out the form below on the same day that the class took place:

`https://forms.office.com/e/zYp73mS5sM`

Failure to complete the question form will result in the question not being counted as student activity.

1.1.2 Grading scale

- < 55% — 2,0 (neg.)
- >= 55% — 3,0
- >= 65% — 3,5
- >= 75% — 4,0
- >= 85% — 4,5
- >= 95% — 5,0

1.1.3 Teams

Make sure you know how to use MS Teams. MS Teams is available at: `https://teams.microsoft.com` (instructions: `https://support.microsoft.com/en-us/teams`). Access code to our team is:

- `3u5zw0b`

1.1.4 Attendance

- attendance list is available at `https://forms.office.com/e/rDKUfQhKgN`
- **IMPORTANT**: always remember to fill in the attendance list

1.1.5 Office hours

`https://www.uni.lodz.pl/pracownicy/jakub-szczerbowski`

1.1.6 Link to this file

This material is available at `https://github.com/j4kub5/dydaktyka`

1.1.7 Survey

In order to improve the quality of my teaching, I conduct a continuous anonymous and optional survey that anyone can fill out:
`https://forms.office.com/e/Vbw0eG6F5T`
The survey can be filled out multiple times during the semester.

1.1.8 Rules for our classes

- Discussion is allowed (and welcome!), talking outside of discussion is not.
- Disturbing the class is prohibited.
- Photographing people and recording sound are prohibited.
- Violating the above rules may result in receiving a **yellow card**. Every **two subsequent yellow cards result in the grade being lowered** to the next lowest level.
- Be kind to others.

- Discussions regarding politics are permissible only as an exception, provided they serve the educational purpose of the class. Otherwise, I kindly ask that political topics not be raised.

1.1.8.1 Special yellow card rule

Failure to include a yellow card in the activity form will result in the grade being lowered to the next lower grade.

1.1.9 Presentations (approx. 30 min. + 10-15 minutes for Q&A)

1.1.9.1 Presentation Guidelines

1.1.9.1.1 Presentation Structure and Duration

- Presentations should be well planned, don't exceed your time
- Use PowerPoint or an equivalent software for slides

1.1.9.1.2 Citation and Sources

- Properly cite all sources used in the presentation
- Include a bibliography or reference slide at the end

1. Where to find literature?

   Google Scholar A search engine indexing scholarly literature from publishers, repositories, universities, and other academic sources; it also provides citation counts and citation links.

   Semantic Scholar An academic search engine using AI-based methods to index, classify, and connect scholarly publications, authors, references, and citations.

   SSRN An online repository for research papers, including working papers, preprints, and published papers, with substantial coverage of law and the social sciences.

   Asta An AI-based research system that searches academic literature, follows citation links, and generates answers and research syntheses based on retrieved publications.

   ResearchRabbit A literature-discovery system that uses publications as starting points to construct and visualize networks of related papers, authors, references, and citations.

1.1.9.1.3 File Sharing and Naming Convention

- Share presentations on the Teams channel before you present
- Follow the naming convention:

`YYYY-MM-DD_StudentName1_ShortTitle.[pdf|pptx|...]`

1.1.9.1.4 Slide Design Guidelines

- Use a consistent theme and color scheme
- Limit text on slides (6-7 lines maximum per slide)
- You may include relevant visuals to support key points

1.1.9.1.5 Delivery

- Practice the presentation to ensure proper timing
- Prepare to answer questions from the audience

1.1.9.1.6 Resources

- "How to Speak"by Patrick Winston: `https://youtu.be/Unzc731iCUY?si=L8sySYO3IKsI_WTv`

1.1.9.1.7 AI Use

1. Rules for Using AI in Preparing Presentations

   You are encouraged to use AI tools extensively when preparing your presentation. AI may assist you with

   - research,
   - understanding difficult concepts,
   - finding literature,
   - structuring your presentation,
   - preparing slides,
   - improving language,
   - and practising for the discussion.

However, the following rules apply:

(a) You are responsible for everything you present If it appears in your presentation, you are responsible for it.

(b) Verify facts and sources independently AI may invent references, misrepresent sources, or oversimplify academic debates. Never cite a source merely because an AI system has provided it. Check that the source exists and that it actually supports the claim you are making.

(c) AI is a tool, not an academic source Use AI to help you find, understand, analyse, and discuss academic literature. Your substantive claims should ultimately be grounded in reliable primary or secondary sources rather than in AI-generated answers.

(d) You must understand everything in your presentation Do not include concepts, arguments, quotations, formulas, cases, or theories that you cannot explain without AI.

(e) You are expected to become the expert on your topic After your presentation, you will be expected to answer questions from the lecturer and other students without relying on AI. Questions may go beyond the exact content of your slides.

(f) Be transparent about your use of AI At the end of your presentation, briefly indicate which AI tools you used and what you used them for. A detailed transcript of every prompt is not required.

(g) Use AI to challenge yourself, not only to help yourself Ask AI to identify weaknesses in your reasoning, produce counterarguments, find counterexamples, question your assumptions, and simulate difficult questions from the audience. See the 3 as an example.

2. Basic principle

   You may use AI for almost anything in preparing your presentation, but you remain intellectually and academically responsible for the final result.

3. Prompt for practicing presentations

   (See attachment: PDF or PowerPoint presentation.)

   I have given a presentation on the following topic: **[TOPIC]**.

   I want to prepare for a real discussion after the presentation. Conduct a realistic and demanding simulation of questions from the entire room, based on the attached presentation.

Play the roles of different people taking part in the discussion:

- **the lecturer** — asks precise questions that test whether I really understand the topic, and notices oversimplifications and mistakes;
- **a well-prepared student** — knows the subject and can point out an issue I failed to address;
- **an inquisitive student** — keeps asking "why?", "what is this based on?", and "is this always the case?";
- **a sceptical student** — challenges my assumptions and demands justification;
- **an argumentative student** — holds a different position and tries to convince me that I am wrong;
- **a student who did not understand something** — asks me to explain it more simply or interprets my statement differently from what I intended;
- **a practically minded student** — asks about a concrete case, example, or practical consequence;
- **a student who goes beyond the topic** — sees a connection with another issue and asks an unexpected but reasonable question.

Questions may also concern axiological, social, economic, moral, or political controversies connected with the topic. Participants may hold strong and mutually conflicting views. Do not assume that the position presented in my talk is correct.

(a) Rules of the simulation

Ask **one question at a time** and wait for my answer.

Before each question, briefly indicate who is asking it, for example: "Lecturer:", "Sceptical student:".

Do not follow a neat or predictable sequence of questions. Simulate a real discussion: move between basic, specialist, practical, argumentative, and unexpected questions.

Do not give me hints before I answer.

React to what I actually say. If my answer opens up a new problem, follow up on it. If I use a concept whose meaning may be unclear, ask me to explain it.

Sometimes challenge a premise of my reasoning. Sometimes provide a counterexample. Sometimes ask for an example. Sometimes ask me to explain the issue in very simple language.

If my position concerns a controversial issue, present a strong counterargument instead of automatically agreeing with me.

Do not manufacture conflict for its own sake. The questions should be intellectually justified and realistic.

(b) After each answer

Do not immediately provide a complete model answer. First allow the discussion to continue. If my answer is unclear, incomplete, or vulnerable to criticism, let the next participant exploit that weakness and ask a follow-up question.

Every few questions, pause the simulation and briefly tell me:

- what I am handling well,
- where a gap in my knowledge has become apparent,
- which of my answers were imprecise,
- what I should read or revise before the presentation.

Then continue the discussion.

(c) Main objective

Do not test whether I have memorised my presentation. Test whether I have **mastered the topic well enough to defend, explain, modify and — where the arguments require it — correct my own position during an unpredictable discussion**.

Do not go easy on me. I want to discover every weak point in my knowledge before the actual presentation.

1.1.9.2 Presentation topics

1. Logic and law
2. Approaches to understanding law
3. Law versus other normative systems
4. The concept of justice
5. Situations regulated by law

6. Law-making
7. Legal interpretation
8. Legal system versus legal order
9. Rules vs standards
10. Observance of law
11. Administration of justice
12. Functions of law
13. Norms of conduct (deontic logic)
14. Rule of law
15. Introduction do Law and Economics
16. Law and Economics of Property Law
17. Law and Economics of Tort Law
18. Law and Economics of Contract Law
19. Comparative Law: Method and Scope.
20. Comparative Law: Legal families.

1.2 The position of theory of law among scientific disciplines

Literature: N. Qamar, Theory Position in the Structure of Legal Science, SIGn Jurnal Hukum 2021/3/1, DOI: 10.37276/sjh.v3i1.126

2 Following lectures

See teams for plan and updates.